

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., ET AL.,

Respondents.

FMC Docket No. 20-14

**MOTION OF AMERICAN COTTON SHIPPERS ASSOCIATION FOR LEAVE TO
FILE A BRIEF AMICUS CURIAE**

Pursuant to Rule 73 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.73, the American Cotton Shippers Association (“ACSA”) hereby moves with the consent of the Complainant, but without a reply from Respondents regarding their position on this motion for leave to file the accompanying *amicus curiae* brief in support of the April 5, 2023, brief filed by the Intermodal Motor Carriers Conference, American Trucking Association, Inc. (“IMCC”) following the February 6, 2023, Summary Decision in this proceeding.

ACSA is a trade association that represents the U.S. cotton merchandisers industry. ACSA member firms handle over 70% of the U.S. cotton sold in domestic and foreign markets and over 60% of the traded foreign cotton growths in the world. ACSA members purchase cotton from producers and sell to consumers all over the world and bear the responsibilities of managing supply chain logistics to fulfill their contractual obligations of timely and proper delivery to its destination, throughout the globe. As more than 70% of the U.S. raw cotton crop is exported, the maintenance of intermodal supply chain velocity and integrity is an absolute

necessity for our industry. In any given year, ACSA members may collectively ship greater than 150,000 forty-foot containerized loads of cotton, depending on the U.S. crop size. Thus, timely and cost-effective access to export markets via ocean carriers is crucial to the viability of U.S. cotton merchandisers. A decision by the Commission to uphold the Summary Decision and the relief contained therein would directly affect business relationships between U.S. cotton merchandisers and equipment providers and ocean carriers.

As such, ACSA members have a direct interest in this proceeding.

In *Sea-Land Service, Inc. -- Possible Violations of the Shipping Act*, 29 S.R.R. 1326, 1329 (2003), the Commission rejected prior more restrictive practices and simply required *amicus* movants, at any stage of the proceeding, to state their interests in the proceeding and explain why their participation as an *amicus curiae* would be desirable. ACSA has done so by explaining that its member firms are directly affected by the practices at issue in this proceeding, as well as the relief ordered by the Summary Decision. ACSA respectfully submits that its perspective could be useful to the Commission in understanding the impact of the proposed relief on U.S. exporters of cotton goods and potential supply chain issues that may result from therefrom. ACSA and its member firms have deep knowledge about these issues and their impact on the U.S. cotton industry due to their role in purchasing, selling and delivering cotton by intermodal transportation to domestic and foreign buyers.

This brief is filed conditionally herewith within seven days of the filing of IMCC's brief, as required by Rule 73(c). Counsel for ACSA has attempted to confer with the parties pursuant to Rule 71(a), seeking on today's date their consent to file this brief. Complainant consents to the motion. Counsel for Respondents (specifically, counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping

Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and co-counsel for Evergreen Line Joint Service Agreement) responded by noting their receipt of this request and indicating that they are attempting to ascertain the position of Respondents; however, their reply was not yet received by the time of filing of this motion.

Because ACSA has shown a reasonable interest in the proceeding, and that its participation would be desirable, ACSA meets the Commission's standards and should be permitted to participate as *amicus curiae*. See *In re: Vehicle Carrier Services*, 2018 FMC Lexis 30, 1 FMC 2d 175 (2018) (allowing professors to file an amicus because they can offer a "unique perspective" on the issues in the case and "provide insights beyond what the parties are likely to address in their advocacy briefs.")

WHEREFORE, ACSA respectfully requests that its motion for leave to file a brief as *amicus curiae* in this proceeding be granted and that the brief filed conditionally with this motion be accepted.

Respectfully submitted,

/s/ John R. Gilliland
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April 12, 2023

CERTIFICATE OF SERVICE

I certify that, on April 12, 2023, a true and current copy of the foregoing Motion of the American Cotton Shippers Association for Leave to File a Brief Amicus Curiae, along with a copy of the brief filed conditionally therewith, was filed electronically with the Secretary of the Federal Maritime Commission and via electronic mail upon the following counsel for Complainant and counsel for the Respondents:

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